ATTORNEY REVIEW NOTE

Grace J. Parsons | Texas estate plan
Planning reference: April 2023 • Planned execution: May 13, 2025

Not part of the Will. Do not sign this note. The following nine pages are a proposed attested Will and a separate self-proving affidavit. This is an unsigned draft for supervising-attorney review, not a certification of the law in effect on the future execution date.

1. Resolve the age/duration conflict. A trust for a beneficiary younger than four at Grace's death cannot both last no more than 21 years and withhold final principal until age 25. Article IV therefore makes the 21st anniversary of Grace's death an absolute outside limit; age 25 otherwise controls final distribution. This can require distribution before age 25. Earlier discretionary health, education, maintenance, and support payments are also allowed. Obtain express client approval of this priority before signing.

2. Confirm dispositive assumptions. All gifts require 120-hour survival. A deceased child's descendants take that child's share, per stirpes; later-born or adopted children are included. If neither spouse nor descendants survive, Sarah and Howard share equally, the survivor takes all if only one survives, and Grace's Texas heirs take if neither survives. The under-25 trust applies to nonspousal beneficiaries, including ages 18–24. Personal-property discretion concerns administration and allocation, not authority to divert gifts from the named beneficiaries.

3. Verify facts and planning needs. The draft assumes Grace is an adult domiciled in Austin, Travis County, Texas; Thomas is her current spouse; and the stated family information is complete. Confirm identities, ages, descendants, fiduciaries' willingness and eligibility, any prior contractual wills, property character, beneficiary designations, tax exposure, disability-benefit concerns, and any community-property or marital agreements. The Will transfers only Grace's probate interests, not Thomas's property or nonprobate assets payable elsewhere.

4. Guardianship is a nomination. Sarah and Howard are nominated for person and estate; Michael is nominated only as temporary local guardian of the person. These nominations do not displace a legally entitled surviving parent, establish an immediate private guardianship, or waive required court findings, appointment, qualification, or bond.

5. Recheck law and supervise execution. Review Texas Estates Code §§ 251.001–.002 and 251.104 (capacity, attestation, separate affidavit), Chapter 121 (survivorship), § 401.001 (independent administration), § 1104.151 (parental guardian nomination), and § 254.005 (forfeiture), and Texas Property Code § 112.035 (spendthrift), including amendments effective by signing. On the actual signing date, Grace and both competent, disinterested witnesses should sign the Will together, then all three should separately sign and swear to the affidavit before the notary. Verify identities and witness eligibility (statutory minimum age 14). Use May 13, 2025 only if that is the actual execution and oath date; never predate or backdate. Supply actual witness addresses and notary details; no signatures or seal have been simulated.

LAST WILL AND TESTAMENT
OF
GRACE J. PARSONS

ARTICLE I — DECLARATIONS AND FAMILY

1.1 Declaration and revocation. I, Grace J. Parsons, of Austin, Travis County, Texas, being at least eighteen years of age and of sound mind, freely declare this instrument to be my Last Will and Testament. I revoke all prior wills and codicils made by me.

1.2 Family. I am married to Thomas A. Parsons, called “my Spouse” in this Will. My children are Timothy S. Parsons and Joshua J. Parsons. References to “my children” also include any child later born to or legally adopted by me. References to my Spouse identify Thomas A. Parsons, not a future spouse.

1.3 Property covered. This Will disposes of all property I may lawfully devise at death, including my separate property and my interest in community property, wherever situated, and property payable to my probate estate. It does not dispose of my Spouse’s own property or alter a valid nonprobate beneficiary designation. No power of appointment is exercised unless expressly identified in this Will.

ARTICLE II — SURVIVORSHIP AND ESTATE CHARGES

2.1 Survival requirement. Except as otherwise expressly provided, a person must survive me by 120 hours to take a gift under this Will. A person who does not do so, or whose survival for that period is not established by clear and convincing evidence, shall be treated as having predeceased me. The same requirement applies to a substitute gift arising at a later beneficiary’s death, measured from that death. This rule concerns beneficial gifts, not eligibility to serve as a fiduciary. Mandatory law preventing escheat controls.

2.2 Debts and expenses. My Executor shall provide for legally enforceable debts, reasonable funeral and burial or cremation expenses, expenses of my last illness, and proper administration expenses, in the order required by law. My Executor need not accelerate unmatured obligations. Property passing subject to a mortgage or other lien passes subject to that lien unless my Executor determines payment from other estate property is appropriate; this is not a direction to exonerate secured debt.

2.3 Death taxes. To the extent permitted by law, death taxes attributable to property passing under this Will shall be paid from my residuary estate without apportionment among its recipients. Taxes attributable to property passing outside this Will shall be apportioned and recovered as Texas law provides. No allocation shall unnecessarily increase tax by impairing an available marital or charitable deduction. Mandatory law and any controlling tax provision applicable to a particular asset prevail.

ARTICLE III — DISPOSITION OF MY ESTATE

3.1 Entire estate to my Spouse. After provision for the charges described in Article II, I give all the rest, residue, and remainder of my estate, real, personal, and mixed, of every kind and wherever located, including all tangible personal property, to my Spouse, Thomas A. Parsons, outright and free of trust, if he survives me as required by Section 2.1.

3.2 Descendants if my Spouse does not survive. If my Spouse does not survive me as required, I give my entire residuary estate to my descendants who survive me as required, per stirpes. If both of my named children survive and there are no other children, they take in equal shares. A share otherwise distributable to a beneficiary under age 25 shall instead be held under Article IV.

3.3 Alternate beneficiaries. If neither my Spouse nor any of my descendants survives me as required, I give my entire residuary estate in equal shares to Sarah R. Roberts and Howard C. Long, if both survive me as required. If only one survives me as required, that survivor takes the entire residuary estate. If neither survives me as required, the entire residuary estate passes to my Heirs, as defined in Section 9.2. Article IV applies to an individual recipient under age 25.

3.4 Personal-property discretion. My Executor has sole discretion, exercised in good faith and consistently with this Will, to select, value, allocate, sell, or distribute personal property in cash or in kind. This authority includes household furnishings, jewelry, clothing, vehicles, collections, other personal effects, and intangible personal property. My Executor may divide articles among persons or trusts entitled to shares, make fair value adjustments, sell items that cannot conveniently be divided, and distribute the proceeds.

This discretion concerns the manner of administration and distribution, not the identity of beneficiaries or their beneficial shares. It does not permit gifts to others, diminish my Spouse’s gift if he survives me, or bypass a trust required by Article IV. A list or letter I may leave concerning personal effects is advisory only unless it independently satisfies the requirements for an effective testamentary instrument.

3.5 Completeness and substitute gifts. These residuary dispositions include property acquired after execution and gifts that fail or lapse. Descendants of a deceased child take only as provided by the per-stirpes provisions. The express substitute gifts in this Will control over statutory anti-lapse rules to the extent legally permitted. A deceased Sarah’s or Howard’s descendants do not substitute for that person under Section 3.3; the named survivor and then my Heirs take instead. If a recipient becomes unconditionally entitled to an outright gift and dies before delivery, the undelivered gift passes to that recipient’s estate.

ARTICLE IV — SEPARATE TRUSTS FOR YOUNG BENEFICIARIES

4.1 Creation. Whenever a gift under this Will takes effect in favor of an individual other than my Spouse who is then under age 25, my Executor or Trustee shall transfer or retain that property as a separate trust for that individual, called the "Beneficiary." This applies to minors and to adults ages 18 through 24. Each trust is a separate beneficial share even if assets are pooled for investment. Sarah R. Roberts shall serve as Trustee, with succession under Article V.

4.2 Discretionary support before termination. The Trustee may distribute to or for the Beneficiary as much net income and principal as the Trustee, in good-faith discretion, considers advisable for the Beneficiary's health, education, maintenance, and support. Education includes vocational, undergraduate, graduate, and professional study and reasonable related living expenses. The Trustee may consider other resources known to be available but need not require their exhaustion. Undistributed income shall be added to principal. No fixed periodic payment is required.

4.3 Age 25; overriding 21-year limit. Subject to Section 4.4, the Trustee shall distribute the remaining trust property outright to the Beneficiary when the Beneficiary reaches age 25. However, every trust under this Will must terminate no later than the 21st anniversary of my death. If that date occurs before the Beneficiary reaches age 25, the Trustee shall distribute the remaining property outright to the Beneficiary on that date. The 21-year limit expressly controls over the age-25 provision. Except for support distributions under Section 4.2, death under Section 4.4, or this mandatory outside limit, no earlier principal distribution or termination is authorized.

4.4 Death before final distribution. If the Beneficiary dies before becoming entitled to final outright distribution, the remaining trust property shall pass to that Beneficiary's descendants, per stirpes, who survive that Beneficiary as required by Section 2.1. If none, it shall pass to my then-living descendants, per stirpes, subject to the same survival requirement. If none, it shall pass equally to Sarah R. Roberts and Howard C. Long who so survive; if only one so survives, to that survivor; if neither, to my Heirs determined at the Beneficiary's death. A recipient under age 25 takes in a separate trust under this Article, but never beyond the original 21st anniversary of my death.

4.5 Finality of outside limit. No later addition, substitute gift, division, merger, change of Trustee, or change of situs extends the outside limit. On that date all beneficial trust restrictions end and the persons then entitled take outright. Reasonable time solely to wind up and transfer title does not extend beneficial restrictions. If a final recipient is a minor or lacks legal capacity to receive property, transfer shall be made to a duly authorized guardian of the estate or as a court lawfully directs, not to a new trust that extends this term.

ARTICLE V — TRUST ADMINISTRATION AND TRUSTEES

5.1 Named Trustees. I appoint Sarah R. Roberts as sole Trustee of each trust under this Will. If she dies, declines, resigns, becomes unable to serve, or ceases to serve, I appoint Howard C. Long as successor Trustee. Each may serve independently without bond to the extent permitted by law. “Trustee” includes every duly acting successor.

5.2 Further succession and resignation. A serving Trustee may designate a qualified further successor by signed writing delivered to the adult Beneficiary or the Beneficiary’s legal representative. That designation takes effect only after both Sarah R. Roberts and Howard C. Long have failed or ceased to serve and may not displace an available named successor. If a vacancy remains, adult beneficiaries holding a majority of the current beneficial interests may select an independent qualified individual or a corporate fiduciary authorized to act in Texas. If they cannot do so, an interested person may seek court appointment. A resignation requires at least 30 days’ written notice to the successor and the adult Beneficiary or legal representative and becomes effective only when a successor accepts or a court authorizes it.

5.3 Distributions and receipts. During the trust term, the Trustee may make authorized support payments directly to a provider, to the Beneficiary, or to a legally authorized guardian or custodian for the Beneficiary. The Trustee shall exercise reasonable care in selecting a recipient and in protecting the Beneficiary’s interests. A lawful receipt discharges the Trustee for the amount properly paid, but not for a breach of duty. No payment arrangement may be used to extend the trust’s outside limit.

5.4 Spendthrift restriction. To the fullest extent Texas law permits, both income and principal interests are held subject to a spendthrift trust. Before actual receipt, no Beneficiary may voluntarily or involuntarily transfer, assign, pledge, anticipate, or encumber an interest, and no such interest is subject to attachment, execution, garnishment, or other creditor process. This provision is subject to mandatory statutory exceptions and does not protect property after distribution. A Beneficiary may enforce proper administration but may not compel a discretionary payment except as this Will or applicable law provides.

5.5 Records, information, and compensation. The Trustee shall keep accurate records, keep trust assets separate from personal assets, and provide accounts and information required by Texas law. Each fiduciary may receive reasonable compensation permitted by law and reimbursement of reasonable, necessary expenses. Services already compensated shall not be charged twice merely because the same person holds more than one office.

5.6 Fiduciary limits. A Trustee who is also a Beneficiary may make distributions to himself or herself only under an ascertainable health, education, maintenance, and support standard. No Trustee may use a distribution power to discharge the Trustee’s own legal support obligation. A disinterested successor or special Trustee selected by a court shall act when necessary to avoid a prohibited conflict. No provision excuses bad faith, reckless indifference, or other liability that Texas law does not permit to be waived.

ARTICLE VI — INDEPENDENT EXECUTOR

6.1 Appointment. I appoint my Spouse, Thomas A. Parsons, as Independent Executor of my estate. If he fails or ceases to serve for any reason, I appoint Sarah R. Roberts as successor Independent Executor. Each appointment is without bond or other security to the extent permitted by law. If neither can serve, I request that a court appoint a qualified personal representative and authorize independent administration to the fullest extent then permitted by Texas law.

6.2 Independent administration. I direct that, to the extent Texas law permits, no action shall be had in any court in relation to settlement of my estate other than the probate and recording of this Will and the return of an inventory, appraisement, and list of claims, or an affidavit in lieu thereof when lawfully available. This direction does not dispense with any mandatory filing, notice, creditor procedure, court order, accounting, or other legal requirement.

6.3 Powers and title. My Executor shall have all powers conferred by Texas law and Article VII, exercisable without court order to the extent permitted by law. These include authority to collect and possess estate property; manage and sell real or personal property at public or private sale; execute conveyances; resolve claims; and make required distributions. Purchasers may rely upon a lawful conveyance without supervising application of the proceeds. No sale power changes the beneficial gifts in Article III.

6.4 Administration and reserves. My Executor may maintain reasonable reserves for debts, taxes, expenses, and contingent liabilities; make partial distributions when prudent; and defer a distribution for a reasonable period necessary to administer the estate. Deferral shall not be used to create an unauthorized trust or defeat a beneficiary’s vested entitlement. My Executor may fund trusts provisionally or finally and may pay administration expenses fairly attributable to property before transfer.

6.5 Tax matters. My Executor may file returns, select lawful valuation dates, make elections, allocate available tax exemptions, seek refunds, and settle tax liabilities. In considering a qualified disclaimer, portability election, or other election affecting beneficiaries, my Executor shall act within applicable law and fiduciary duties; this provision does not authorize a disclaimer on behalf of a competent beneficiary without lawful authority or create a power to alter my dispositive plan.

6.6 Eligibility and successors. Every nominated fiduciary must meet applicable legal qualifications. A nonresident fiduciary shall appoint any required resident agent. A successor has the same powers and duties as the original fiduciary and shall receive the records and property of the office. An outgoing fiduciary remains accountable for that fiduciary’s own administration. An Executor’s compensation and expense reimbursement are governed by Section 5.5 and applicable Texas law.

ARTICLE VII — POWERS OF EXECUTOR AND TRUSTEE

7.1 General grant. In addition to powers granted by law, my Executor and each Trustee may exercise the following powers over property under that fiduciary's administration, without court approval except where approval is mandatory. The powers are administrative, not authority to change gifts, remove the age or duration limits, or disregard fiduciary duties.

7.2 Retain, invest, and manage. Retain assets received, including concentrated holdings, business interests, real estate, and unproductive assets, while retention is consistent with the purposes of this Will and applicable duties; invest and reinvest in lawful investments; open financial accounts; employ investment managers; and hold assets through a nominee or securities depository with adequate ownership records. Exercise investment authority under the Texas prudent-investor rules except as validly modified here, with appropriate attention to risk, return, liquidity, and diversification.

7.3 Sell and deal with property. Sell, exchange, partition, lease, convey, repair, improve, insure, abandon property of no material net value, or otherwise manage real or personal property on reasonable terms, for cash or credit. Execute deeds, assignments, releases, contracts, and other instruments; grant reasonable options and easements; and handle mineral interests, leases, pooling, and unitization agreements. This power includes sales to facilitate distribution and sales of trust property before the Beneficiary reaches age 25, with proceeds remaining subject to the trust.

7.4 Business and borrowing. Continue, reorganize, or liquidate a business; vote securities and exercise ownership rights; enter agreements reasonably necessary for administration; borrow money for proper estate or trust purposes; and secure an authorized obligation with administered property. No power authorizes using estate or trust assets to guarantee a fiduciary's personal debt.

7.5 Claims and advisers. Collect, compromise, arbitrate, mediate, prosecute, defend, or settle claims in good faith; hire and pay attorneys, accountants, appraisers, agents, property managers, and other qualified advisers; and delegate functions to the extent Texas law permits, with appropriate selection, scope, and oversight. A fiduciary may rely reasonably on competent advice but remains subject to nondelegable duties.

7.6 Division and distribution. Determine fair values using reasonable methods; divide or distribute in cash, in kind, or partly each; allocate undivided interests or different assets among shares without pro rata division of each asset; and make equalizing payments. Values and allocations must preserve the beneficial shares and be impartial among beneficiaries, consistent with the purposes of this Will. The fiduciary may pool investments or combine substantially identical trusts only with separate share records and without extending the outside limit or changing beneficial rights.

7.7 Accounting and safeguards. Allocate receipts and disbursements between income and principal under applicable Texas law, establish reasonable reserves, and execute lawful tax and administrative documents. No power permits prohibited self-dealing, personal appropriation, an unauthorized beneficial amendment, or disregard of mandatory law. Fiduciaries remain accountable for good-faith, prudent administration and may seek judicial instructions when appropriate.

ARTICLE VIII — GUARDIANSHIP NOMINATIONS

8.1 Permanent guardians. If at my death or thereafter any of my children is a minor and no surviving parent is legally entitled, qualified, and able to act, I nominate Sarah R. Roberts as guardian of the person and, if needed, guardian of the estate of each such child. If she fails or ceases to serve, I nominate Howard C. Long in the same capacities. These are parental nominations subject to applicable Texas law, the rights of a surviving parent, the child's best interests, and any required court appointment and qualification.

8.2 Temporary local guardian. If there is a lawful need for interim care before the permanent guardian can qualify and assume actual custody, I nominate Michael T. Fisher as temporary local guardian of the person of each such minor child. I request that he arrange safe local care until Sarah R. Roberts, or Howard C. Long if applicable, is legally authorized and able to take custody. His authority exists only as recognized or granted by law or court order and ends as that order or law requires when the permanent guardian assumes care. This Will alone grants no immediate right to take possession of a child.

8.3 Personal wishes and financial coordination. I request that my children remain together when practicable and that their education, health, and emotional needs guide their guardian. A guardian may consult with the Trustee and request authorized support payments. Trust property remains under the Trustee's control and does not become guardianship property solely because the same individual holds both offices. No guardian may alter the beneficial interests or distribution conditions of a trust.

8.4 Bond and authority. I request waiver of guardian bond only where lawful and appropriate; I do not waive a bond or protection that Texas law makes mandatory, including any required guardian-of-the-estate bond. A temporary guardian has only the authority specified by law and the appointing court, not the full authority of a permanent guardian merely because of this nomination.

ARTICLE IX — CONSTRUCTION AND GENERAL PROVISIONS

9.1 Descendants and per stirpes. "Descendants" means lineal descendants of every degree, with legally adopted persons and their descendants treated as members of the adoptive family; parentage is determined under Texas law. A stepchild is not included solely because of that relationship. A descendant in gestation at the relevant death, later born alive and surviving birth by 120 hours, is treated as then living. "Per stirpes" means division at the child level of the person whose descendants are described: one equal share for each living child and each deceased child leaving living descendants, with a deceased child's share divided among that child's descendants in the same manner at each generation.

9.2 Heirs. "My Heirs" means the persons who would inherit my separate personal property under Texas intestacy law if I died unmarried at the time the relevant gift takes effect, with the survival requirement in Section 2.1 applied. For Section 3.3 that time is my death; for Section 4.4 it is the Beneficiary's death.

ARTICLE IX — GENERAL PROVISIONS (CONTINUED)

9.3 Construction, severability, and law. Texas law governs this Will and its trusts, except mandatory law governing property elsewhere. “Executor” includes a duly acting successor personal representative; singular and plural and gendered terms include their corresponding forms when context requires. Headings aid reference only. If a provision is unenforceable, the remaining provisions remain effective to the extent consistent with my lawful dispositive intent. Statutory consequences of a later divorce, annulment, or other family change are not overridden.

9.4 Contest provision. To the extent enforceable under Texas law, a beneficiary who directly contests the validity of this Will or a dispositive provision forfeits the gifts to that beneficiary, which pass as if that beneficiary had predeceased me. There is no forfeiture for an action brought and maintained in good faith and with just cause, or solely seeking construction, proper fiduciary administration, an accounting, or enforcement of lawful rights without challenging validity. This clause shall not be applied contrary to Texas Estates Code Section 254.005.

9.5 Disclaimers. A lawful disclaimer shall have the effect prescribed by applicable law and this Will’s substitute-gift provisions. A fiduciary may receive and administer disclaimed property but may not use this clause to redirect another person’s gift or extend a trust beyond its outside limit.

ARTICLE X — EXECUTION AND WITNESS ATTESTATION

I, **Grace J. Parsons**, declare this instrument, consisting of nine consecutively numbered Will pages including the following self-proving affidavit, to be my Last Will and Testament. I sign it willingly as my free act on **May 13, 2025**, in Travis County, Texas, in the presence of the two witnesses below, whom I request to witness my signature and this Will.

_____

Grace J. Parsons, Testator

On **May 13, 2025**, Grace J. Parsons declared this instrument to be her Last Will and Testament and willingly signed it in our presence. At her request, we sign below as witnesses in her presence and in the presence of each other. Each of us is at least fourteen years of age and competent to serve as a witness. She appeared to us to be of sound mind and acting voluntarily.

_____	_____
Jose P. Harris, Witness	Geraldine R. Watson, Witness
Address: _____	Address: _____
_____	_____

SELF-PROVING AFFIDAVIT

STATE OF TEXAS §
COUNTY OF TRAVIS §

Before me, the undersigned authority, on this day personally appeared **Grace J. Parsons**, **Jose P. Harris**, and **Geraldine R. Watson**, known to me or proved to me through satisfactory evidence of identity to be the Testator and the witnesses, respectively, whose names are subscribed to the annexed or foregoing instrument in their respective capacities. All of said persons being by me duly sworn, Grace J. Parsons, Testator, declared to me and to the witnesses in my presence that the instrument is her Last Will and Testament and that she had willingly made and executed it as her free act and deed.

The witnesses, each on oath, stated to me, in the presence and hearing of the Testator, that the Testator had declared to them that the instrument is her Last Will and Testament, that she executed it as such, and that she wanted each of them to sign it as a witness. Upon their oaths each witness further stated that they did sign it as witnesses in the presence of the Testator and at her request; that the Testator was at that time eighteen years of age or over and was of sound mind; and that each witness was then at least fourteen years of age.

_____
Grace J. Parsons, Testator

_____
Jose P. Harris, Witness

_____
Geraldine R. Watson, Witness

Subscribed and sworn to before me by **Grace J. Parsons**, Testator, and by **Jose P. Harris** and **Geraldine R. Watson**, witnesses, on **May 13, 2025**.

_____
Notary Public, State of Texas

Printed name: _____ *(Notarial seal)*

Notary ID No.: _____

Commission expires: _____